

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

**ANTONIO SMALL; TONIA SMALL;
TANESHA SMALL; GISELLE THOMAS;
TIANNA THOMAS; KARIANN THOMAS;
SHARROD THOMAS, and ROBERT
WALCOTT**

Plaintiffs,

-against-

**THE CITY OF NEW YORK; DET. JOSEPH
BAUTISTA; SGT. DAVID GRIECO; P.O.
SIMON NG; and DOES 1-10,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Kings County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
May 23, 2023

Rickner PLLC

By:



Stephanie Panousieris

14 Wall Street, Ste 1603
New York, New York 10005
Phone: (212) 300-6506

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Attorney for Plaintiff

TO:

THE CITY OF NEW YORK

New York City Law Department

100 Church Street

New York, New York 10007

DET. JOSEPH BAUTISTA (Shield No. 2403, Tax ID No. 954534)

SGT. DAVID GRIECO (Shield No. 3830, Tax ID No. 940216)

Chief Crime Control Strategies

One Police Plaza

New York, New York 10005

P.O. SIMON NG (Shield No. 14354, Tax ID No. 955260)

67th Precinct

2820 Snyder Ave

Brooklyn, NY 11226

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VERIFIED COMPLAINT

Plaintiffs, by their attorneys at Rickner PLLC, complaining of the Defendants, allege, upon information, belief, and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiffs’ rights under the Fourth and Fourteenth Amendments of the Constitution of the United States and the Administrative Code of the City of New York, §§ 8-801–8-807.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Plaintiffs’ rights under the Fourth and Fourteenth Amendments to the Constitution of the United States, and under the Administrative Code of the City of New York, §§ 8-801–8-807.

3. An award of costs and attorneys’ fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because the Plaintiff's claims arose in the County of Kings.

5. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff Antonio Small (hereinafter "Antonio"), was, at all times relevant to this action, a resident of Kings County in the State of New York.

7. Plaintiff Tonia Small (hereinafter "Tonia"), was, at all times relevant to this action, a resident of Kings County in the State of New York.

8. Plaintiff Tanesha Small (hereinafter "Tanesha"), was, at all times relevant to this action, a resident of Kings County in the State of New York.

9. Plaintiff Giselle Thomas (hereinafter "Giselle"), is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

10. Plaintiff Tianna Thomas (hereinafter "Tianna"), was, at all times relevant to this action, a resident of Kings County in the State of New York.

11. Plaintiff Kariann Thomas (hereinafter "Kariann"), was, at all times relevant to this action, a resident of Kings County in the State of New York.

12. Plaintiff Sharrod Thomas (hereinafter "Sharrod"), was, at all times relevant to this action, a resident of Kings County in the State of New York.

13. Plaintiff Robert Walcott (hereinafter "Walcott"), was, at all times relevant to this action, a resident of Kings County in the State of New York.

14. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

15. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

16. Defendant Det. Joseph Bautista (Shield No. 2403, Tax ID No. 954534) (hereinafter “Bautista”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York State law, and acting in the course and scope of his duties. He is sued in his individual capacity.

17. Det. Bautista is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

18. Det. Bautista is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

19. Defendant Sgt. David Grieco (Shield No. 3830, Tax ID No. 940216) (hereinafter “Grieco”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York State law, and acting in the course and scope of his duties. He is sued in his individual capacity.

20. Sgt. Grieco is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

21. Sgt. Grieco is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

22. Defendant P.O. Simon Ng (Shield No. 14354, Tax ID No. 955260) (hereinafter “Ng”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

23. P.O. Ng is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

24. P.O. Ng is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

25. Defendant John Does Nos. 1–10 were at all relevant times, NYPD officers employed by the City of New York. At all relevant times, Does 1–10 were acting under color of New York state law, and acting in the course and scope of their duties attendant to that employment. Each is sued in an individual capacity.

26. The true names and shield numbers of Does 1–10 are not currently known to Plaintiff. However, each is an employee or agent of the NYPD. Accordingly, each is entitled to representation in this action by the New York City Law Department upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice that (a) Plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers are known; and (b) the Law Department should immediately begin preparing the Doe Defendants’ defense in this action.

27. Bautista, Grieco, Ng, and Does 1–10 are referred to collectively as the “Individual Defendants.”

28. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and

officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

29. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFFS' CIVIL RIGHTS

30. On or about May 24, 2020, Plaintiff Antonio Small was standing outside of a friend's apartment building near 250 Clarkson Avenue in Brooklyn, New York, hanging out with several other young men, when an unmarked sedan pulled up and several officers exited the vehicle.

31. Plaintiff and his friends—all young men of color—were immediately approached, stopped, and frisked by the Individual Defendants in the absence of probable cause.

32. Some of the young men were smoking marijuana when the police approached the group. Plaintiff was not smoking, but had a small amount of marijuana in his bag, which was searched by the Individual Defendants, and served as the basis for his arrest.

33. But possession of small quantities of marijuana has not been a crime in most instances in New York since 1977, and was further decriminalized starting on August 28, 2019, nine months before this unlawful stop and frisk occurred.

34. The NYPD, however, failed to change its practices to conform to the law, and continued using possession of small amounts of marijuana as a pretext to arrest and detain young

men of color and interrogate them about unrelated incidents, or unlawfully hold them in a precinct while NYPD officers attempt to obtain evidence of an actual crime.

35. This encounter was no different. Despite the fact that Antonio did not commit a crime, the Individual Defendants cuffed and detained him and took him to 67th Precinct to interrogate him for a completely unrelated matter, in lieu of obtaining a warrant based on probable cause to arrest Antonio for the crime they were actually investigating.

36. While at the precinct, the Individual Defendants threatened to throw Antonio into Rikers if he did not give them the information they were seeking.

37. While the interrogation ensued, a number of the Individual Defendants went to Plaintiffs' family home and attempted to enter and search the location. Antonio's mother, Giselle, refused to let the officers in without a warrant.

38. Without any probable cause to keep Antonio detained, and without the ability to inculcate him further, the officers were forced to release Antonio with a summons for possession.

39. The single charge was not prosecuted by the Kings County District Attorney's Office, because, as the Individual Defendants knew all too well, the charge was a nullity under the law.

40. One or more of the Individual Defendants continued to pursue Antonio after his release, and used false statements and material misstatements and omissions to obtain a search warrant, which was executed at Plaintiffs' family home a few days after Antonio's arrest.

41. Upon information and belief, even if the warrant was obtained lawfully, the Individual Defendants nevertheless exceeded its scope when they kicked down the front door of Plaintiffs' family residence and searched every room (including the bedrooms of minor children, and separate apartment units belonging to different family members on various levels of the home).

42. The search was further unreasonable because the Individual Defendants destroyed property and ransacked the home unnecessarily, causing damage to property and inflicting unnecessary emotional pain on Plaintiffs.

43. No evidence of any crime was obtained during this unlawful search. But officers' unconstitutional actions terrified and traumatized each of the Plaintiffs, in violation of their Fourth Amendment right to be secure from unreasonable searches and seizures.

THE INJURIES TO PLAINTIFFS

44. This action seeks damages on behalf of Plaintiffs for the extraordinary emotional pain and suffering, loss of liberty, and injuries to their persons and property, that Plaintiffs were forced to endure as a consequence of the Individual Defendants' decidedly wrongful actions.

45. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiffs' civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

46. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CLAIM FOR RELIEF: FALSE ARREST UNDER 42 U.S.C. § 1983 BY ANTONIO SMALL AGAINST THE INDIVIDUAL DEFENDANTS

47. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. The Individual Defendants approached, restrained, frisked, arrested, and detained Plaintiff without probable cause, holding him at the precinct with the improper purpose of investigating unrelated crimes.

49. The Individual Defendants knew that that marijuana possession was not an arrestable offense, but nevertheless used this possession as a pretext to arrest Antonio and hold him while they attempted to gather evidence of a more serious offense, in violation of the Fourth Amendment.

50. By virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of his civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures.

51. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, and the Individual Defendants are liable to Plaintiff for compensatory and punitive damages under 42 U.S.C. § 1983.

**SECOND CLAIM FOR RELIEF:
ILLEGAL SEARCH UNDER 42 U.S.C. § 1983
BY ALL PLAINTIFFS AGAINST THE INDIVIDUAL DEFENDANTS**

52. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. The Individual Defendants searched Plaintiffs' home using a warrant obtained with false statements and material misrepresentations or omissions. without probable cause to do so.

54. Even if there was sufficient probable cause for a warrant to issue, the manner in which the search was conducted was unreasonable in its scope and manner.

55. By virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived of their civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures.

56. As a result of the above unconstitutional conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, and the Individual Defendants are liable to Plaintiffs for compensatory and punitive damages under 42 U.S.C. § 1983.

**THIRD CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
BY ALL PLAINTIFFS AGAINST THE INDIVIDUAL DEFENDANTS**

57. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

58. The Individual Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiffs were subjected, despite the fact that they had opportunities to do so.

59. The Individual Defendants thereby displayed deliberate indifference to Plaintiffs' rights, including the right to be free from unreasonable and unlawful searches and seizures.

60. The Individual Defendants also Defendants agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiffs of clearly established rights.

61. By virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived of their civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures.

62. As a result of the above unconstitutional conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, and the Individual Defendants are liable to Plaintiffs for compensatory and punitive damages under 42 U.S.C. § 1983.

**FOURTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 BY ALL PLAINTIFFS
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

63. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

64. Plaintiffs' right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

65. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

66. Qualified immunity is no defense to this claim.

67. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

68. As a result of the above unconstitutional conduct, Defendants are liable for compensatory and punitive damages.

**FIFTH CLAIM FOR RELIEF:
MONELL AGAINST THE CITY OF NEW YORK**

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

70. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

71. The City and its agents have a pattern and practice of using possession of small amounts of marijuana as a pretext to unlawfully arrest, detain, and interrogate young men of color.

72. Despite decriminalization in 2019 and a clear legislative mandate to reduce police encounters for mere possession, the agency and its officers nevertheless continue this unlawful practice, falsely arresting and detaining Antonio, and others like him, for improper purposes.

73. The City also fails to adequately supervise or discipline its officers for such practices, and has long had a policy of ratifying illegal conduct by failing to implement

74. As a result of this unconstitutional conduct, the City of New York is liable for any damages caused, except for punitive damages.

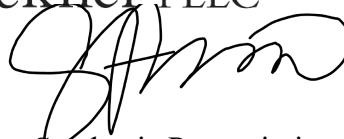
WHEREFORE, Plaintiffs demand the following relief, jointly and severally, against the Individual Defendants and the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
May 23, 2023

Rickner PLLC

By:



Stephanie Panousieris

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Stephanie Panousieris, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiffs.

2) I have read the annexed Verified Complaint and know the contents thereof, and the same is true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.

3) This verification is made by me because Plaintiffs do not reside in the County where I maintain my offices.

Dated: New York, New York
May 23, 2023

Rickner PLLC

By:



Stephanie Panousieris

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